

STATE OF NEW YORK

6015--A

2025-2026 Regular Sessions

IN SENATE

March 4, 2025

Introduced by Sen. BASKIN -- read twice and ordered printed, and when printed to be committed to the Committee on Local Government -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the Erie county tax act, in relation to decreasing the time a vacant property may sit in foreclosure in Erie county

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 9-1.0 of chapter 812 of the laws of 1942, constituting the Erie county tax act, is amended to read as follows:

2 § 9-1.0 When foreclosure may be taken. (a) Whenever a tax sale certificate issued on any tax sale shall be outstanding, unredeemed and unpaid for a period of not less than two years nor more than twenty-five years after the issuance thereof and no conveyance has been taken thereunder, the holder of such tax sale certificate, including the county of Erie, may bring an action to recover the amount paid for such certificate with all interest, penalties, additions and expenses as in this act provided. For that purpose, such a holder may maintain an action in the supreme court or in the county court of Erie county for the sale of the lands affected by such certificate. Jurisdiction of such action is hereby expressly conferred upon such county court.

14 (b) For real property that has been certified vacant and abandoned pursuant to section thirteen hundred nine of the real property actions and proceedings law, whenever a tax sale certificate issued on any tax sale shall be outstanding, unredeemed and unpaid for a period of not less than one year nor more than twenty-five years after the issuance thereof and no conveyance has been taken thereunder, the holder of such tax sale certificate may bring an action to recover the amount paid for such certificate with all interest, penalties, additions and expenses as in this act provided. For that purpose, such a holder may maintain an action in the supreme court or in the county court of Erie county for

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 the sale of the lands affected by such certificate. Jurisdiction of such
2 action is hereby expressly conferred upon such county court.

3 (c) For real property that has been certified vacant and abandoned
4 pursuant to section eleven hundred eleven-a of the real property tax
5 law, the county of Erie shall follow the procedures for enforcement of
6 collection of delinquent taxes pursuant to article eleven of the real
7 property tax law.

8 § 2. This act shall take effect immediately.